

26PR00171 Estate of Fernando Contreras

County: santa-barbara

Division: Decedent's Estate

Department: 2 SM-Cook

Hearing date: 2026-05-19

Motion: Petition for Probate and Letters Testamentary

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/26pr00171>

Source SHA-256: 90953565ce4c76805c12e40b036a13b7b4282e4cc4303a1dd893964cfd17c5

Tentative Ruling: Estate of Fernando Contreras

Case Number

26PR00171

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 05/19/2026 - 09:00

Nature of Proceedings

Petition for Probate and Letters Testamentary

Tentative Ruling

Probate Notes:

The following must be submitted:

Proof of Publication. No proof of publication was filed.

Jurisdiction of the Probate Court is obtained by publication in accordance with Article 3 of Division 7, Part 2, Chapter 2 Probate Code. (Prob. Code, § 8003(b).)

Publication requires the notice to be published in a newspaper adjudicated as a newspaper of general circulation in the city of decedent's residence (Prob. Code, §§ 8121, 7122) and to contain the substantially same language and format shown in Probate Code section 8100. If the city of decedent's residence has no newspaper adjudicated as a newspaper of general circulation, publication must occur "in a newspaper of general circulation in the county which is circulated within the area of the county in which the decedent resided or the property is located." (Prob. Code, §8121(b).)

It is unacceptable to merely file a copy of the newspaper clipping as proof of publication. A Petitioner must obtain an affidavit executed under the penalty of perjury by the person with authority to affect publication at the newspaper. (Prob. Code, §8124.)

PUBLICATION MUST BE IN THE SANTA MARIA TIMES.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

312-C East Cook Street P.O. Box 5369

Santa Maria, CA 93456-5369

US